

Court No. - 36

Case :- WRIT - C No. - 36586 of 2015

Petitioner :- Smt. Rani Rajpoot

Respondent :- State Of U.P. And 2 Ors.

Counsel for Petitioner :- R.K. Tripathi, Anupama Tripathi

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Rajes Kumar, J.

Hon'ble Shamsher Bahadur Singh, J.

Heard Sri R.K. Tripathi, learned counsel for the petitioner and Dr. S.K. Yadav, learned counsel appearing on behalf of respondent nos. 2 and 3.

It is a case of electricity dues. The petitioner contended that due to some personal difficulty she could not deposit the bill. However, petitioner states she is prepared to pay the bill amount, provided she is extended facility to deposit the same in easy instalments.

Respondents, represented by their counsel, have no objection to the above in view of Clause 6.14 of the U.P. Electricity Supply Code, 2005.

In view of the above, as a special case, we direct that the respondents, their agents, servants, employees, officers etc. shall not proceed to recover the amount in question or proceed with attachment / auction sale etc. (subject matter of this writ petition) provided the petitioner makes deposits as follows:

1. Petitioner shall make deposit of the claimed amount in four monthly instalments. The first instalment will be deposited within one month from today, which will be Rs.60,000/- and balance shall be paid in three equal monthly instalments, which will commence from the next date of deposit of the aforesaid amount.
2. Any amount already deposited under above account shall be duly adjusted and taken care of.
3. In case, petitioner makes payments as per schedule prescribed above and comply with all the conditions contained herein, no amount as collection charges shall be recovered.
4. But in case petitioner commits default of any of the above conditions, this order shall stand vacated automatically on the date of default itself without further reference to the Court and the petitioner will become liable to pay collection charges also.

5. If the petitioner feels aggrieved against the calculation given in the account statement, he may seek his remedy, without being prejudiced by this order in any manner, as may be available in law.
6. In case on account of selfsame bill earlier writ petition has been proceeded or auction has already taken place, the order, which has been passed hereunder, will not be operative.

Writ petition is disposed of finally on the above directions.

No order is passed as to costs.

Order Date :- 8.7.2015

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